

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN BOLIVIA

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Bolivia, grounded in the environmental licence and EEIA system, prior consultation, the constitutional rights of Indigenous peoples and Mother Earth, the acción popular, and documented community campaigns

This guide uses the Bolivian legal terms you will actually encounter (the ficha ambiental and the EEIA, the licencia ambiental, consulta previa, the acción popular and the Tribunal Constitucional Plurinacional, the Defensoría del Pueblo, the rights of the Madre Tierra, and so on), each explained in plain language where it first comes up. Bolivia's laws and politics change; the core mechanics below apply, but always check the current position.

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up. Spanish terms are given with a short English gloss.

A note on money. Budgets in this guide are in bolivianos (BOB). Every figure is indicative — Bolivian community campaigns range from near-zero (volunteer-run, pro-bono lawyers, free constitutional actions and public data) to funded efforts that commission independent studies. Treat the ranges as a menu, not a bill.

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action changes project outcomes in Bolivia — and the levers are specific, so knowing which ones work is half the battle. Bolivian law requires most significant projects to obtain an **environmental licence (licencia ambiental)** — backed, for the most damaging categories, by a full environmental impact study (**Estudio de Evaluación de Impacto Ambiental, EEIA**) — before they can begin, and it provides for **public participation** and, for Indigenous peoples, **prior consultation (consulta previa)**. Bolivia's **2009 Constitution** is plurinational and unusually strong on rights: it recognises extensive **rights of Indigenous peoples (naciones y pueblos indígena originario campesinos)** over their territories, the principle of **Vivir Bien (Living Well)**, and — through the **Law of Rights of Mother Earth** — the **rights of the Madre Tierra** herself. And it gives communities a powerful, fast constitutional tool, the **acción popular**, to defend collective and environmental rights before the **Plurinational Constitutional Tribunal (Tribunal Constitucional Plurinacional, TCP)** — which has struck down mining authorisations for skipping consultation and even recognised a river as a subject of rights.

That is a genuinely powerful toolkit on paper. The honest counterweight is that Bolivia's economy depends heavily on extraction (gas, mining, and increasingly lithium) and on state-led development; governments have promoted flagship projects hard, sometimes against Indigenous and environmental objections; **consultation is often run as a formality before the impacts are even known, and its results are not binding on the state**; enforcement is weak; and — as the TIPNIS road conflict showed — the state has pushed major projects through despite fierce resistance and unfavourable legal actions. Communities across Bolivia — in the Andes, the valleys, and the Amazon — fighting mines (including on Indigenous land and in the gold-and-mercury frontier), gas blocks, mega-dams (Chepete-El Bala, Rositas), roads (TIPNIS), and deforestation, have organised anyway, and while stopping a national-priority project outright is hard, delay, the annulment of an authorisation that skipped consultation, tighter conditions, and forcing genuine consultation are all achievable.

What "winning" realistically means. Rarely a simple permanent government "no" to a promoted project — though a **TCP** ruling on an **acción popular** that annuls an authorisation is exactly that when you get it. More often: an **EEIA** or authorisation sent back or annulled for skipping consultation or for defects; conditions tightened; a project delayed for years until its economics or politics change; a departmental or municipal authority persuaded to withhold support; or genuine consultation forced where it was skipped. Each has happened. The realistic goal is to make the project slow, costly, and legally exposed — and to use the consultation, **EEIA**, **acción popular**, Indigenous-rights, and Mother-Earth levers that Bolivia actually provides, plus the organised community and Indigenous pressure the country is famous for.

The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — pin down what is proposed, which category (1–4) it falls in, which authority licenses it, whether consultation applies, and the deadlines.
2. **Documentation** — build an evidence record strong enough for consultation, a complaint to the Defensoría, and an **acción popular**.
3. **Local opposition** — organise a durable community and Indigenous movement, because sustained, organised pressure is what Bolivia's system responds to most.
4. **Legal challenges** — use public participation, *consulta previa*, the **acción popular** and **amparo** before the TCP, the **Defensoría del Pueblo**, and Indigenous and Mother-Earth rights.
5. **Media strategy** — generate coverage that raises the political cost of approval.

No single step wins alone. The combination — local and Indigenous pressure plus consultation, the **acción popular**, and the rights framework — is what works.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Bolivia's system leans hard toward extraction and state-led development, treats consultation as a non-binding formality, and has seen the government push flagship projects through against resistance. Assessing that honestly helps you choose the right tools: the strongest routes are usually a rigorous intervention in **consultation and the EEIA**, insisting on genuine **consulta previa** where Indigenous rights are engaged, a complaint to the **Defensoría del Pueblo**, and — above all — an **acción popular** before the TCP on a clean ground (a skipped consultation, an environmental-rights or Mother-Earth violation), all combined with sustained community, Indigenous, and political pressure. A tilt changes which lever works; it does not remove them all. Section 13 deals honestly with tilted situations, including national-priority projects, the TIPNIS precedent, and the risks to land defenders.

How to use this guide

Read Sections 1–3 once. Then work Section 4 (Target Identification) immediately — it produces the facts every other step needs, above all your deadlines, which authority licenses the project, which category it is, and whether *consulta previa* applies. Sections 5–8 run in parallel. Sections 9–11 are reference material. Section 12 pulls it onto one timeline; Section 13 helps you decide, honestly, whether and when to keep going.

HOW THE SYSTEM WORKS

Before you can fight a project you have to know who decides it, how, and the words the system uses. Bolivia is a **plurinational, decentralised state** with a strong central government and recognised **Indigenous autonomies**.

Environmental assessment is governed chiefly by the **Environmental Law (Ley 1333, 1992)** and the **Regulation on Environmental Prevention and Control (Reglamento de Prevención y Control Ambiental, RPCA)**. Power over a project is shared between the **central government** (the environment ministry and the sector ministries — hydrocarbons, mining, energy), the **departmental governments (governaciones)**, the **municipalities**, and the **Indigenous autonomies and organisations**, within a framework set by the **2009 Constitution** and international law (notably ILO Convention 169).

The levels of government — and what each one controls

The central government and the environmental authority. The **Ministry of Environment and Water (Ministerio de Medio Ambiente y Agua, MMAyA)** is the national environmental authority (the AACN — Autoridad Ambiental Competente Nacional): it sets policy and, for the largest and cross-cutting projects, reviews and approves the EEIA and issues the environmental licence. The **sector ministries** — hydrocarbons, mining and metallurgy, energy — promote and regulate their sectors, and (with the state companies YPFB and COMIBOL) are often the drivers of the biggest projects. **SERNAP** manages protected areas.

The departmental governments (governaciones). Departments act as the **competent environmental authority (AACD)** for many projects in their territory, reviewing EEIAs and issuing licences, and are important political actors.

The municipalities. Municipalities handle local land use, some permits, and local politics, and can obstruct or support a project; municipal governments have their own environmental responsibilities.

The Indigenous autonomies and organisations. For projects on or affecting the lands of **naciones y pueblos indígena originario campesinos** — including **TCOs / territorios indígenas originario campesinos** — the affected peoples' own authorities and organisations (and the national confederations, historically CIDOB in the lowlands and CONAMAQ in the highlands) are central actors, and **consulta previa** engages their collective rights.

Which one is "yours"? Ask: which **category (1, 2, 3, or 4)** is the project (this sets whether it needs a full EEIA), and which authority is the **competent environmental authority** — the **national MMAyA** or the **departmental gobernación**? Which sector ministry drives it? Does it affect a **protected area (SERNAP)** or a **water source**? And — decisively — does it affect **Indigenous peoples or their territory**, triggering **consulta previa**? Pinning this down is Step 1, and it decides the deadlines, the decision-maker, and which rights and grounds apply.

How a decision is actually made — the journey of a project

The environmental system sorts projects into **four categories** by severity of impact: **Category 1** (a full EEIA, analítica integral — the most damaging); **Category 2** (a full EEIA, analítica específica); **Category 3** (only a mitigation-and-monitoring plan); and **Category 4** (exempt). For a Category 1 or 2 project the path is roughly:

1. **Ficha ambiental and categorisation.** The proponent submits a **ficha ambiental** (an environmental factsheet describing the project and its likely impacts), and the competent authority **categorises** the project (1–4), which decides whether a full EEIA is required. Getting the category right — and challenging a too-low category — matters.
2. **The EEIA and public participation.** For Category 1–2, the proponent (through registered consultants) prepares the **EEIA**, and **public participation (consulta pública)** runs as part of the process. **This is a formal moment** to get objections on the record — but note a real weakness: participation is often held **before the EEIA's results are known**, and its outcome does not bind the state.
3. **Prior consultation (consulta previa), where it applies.** For projects affecting **Indigenous peoples** — established most strongly for **hydrocarbons**, and grounded in the Constitution and **ILO 169** — the State must carry out **consulta previa** before authorising the measure. It is a real, court-recognised right (its absence has led the TCP to annul authorisations), **but in practice it is often run as a formality and its result is not treated as a binding veto**.
4. **Review and licence.** The competent authority (national or departmental) reviews the EEIA and issues — or refuses — the **environmental licence (licencia ambiental / DIA — Declaratoria de Impacto Ambiental)**, the permission without which the project cannot lawfully begin, with conditions.
5. **Oversight and enforcement.** Once operating, the project is monitored, and breaches can be reported; enforcement is, honestly, weak, which makes the up-front fight and the courts more important.

Beyond the licence, the project needs its sector authorisations (hydrocarbons, mining, water rights) and to comply with land and protected-area rules.

The rulebook — the policies that decide the outcome

- **The Environmental Law (Ley 1333) and the RPCA.** Was the licence required, the right category assigned, the EEIA properly done, and genuine public participation held? The core battleground.

- **The Constitution (2009) and consulta previa (ILO 169).** Does the project respect Indigenous peoples' rights over their territory, and was prior consultation carried out? A skipped consultation is a powerful, court-tested ground.
- **The rights of Mother Earth (Ley 071, 2010; Ley 300, 2012 — Marco de la Madre Tierra y Desarrollo Integral para Vivir Bien).** These recognise the **Madre Tierra** and her components as bearers of rights and enshrine **Vivir Bien** — an emerging but real ground (the TCP has recognised a river as a subject of rights).
- **Sector, water, forest, and protected-area law.** Hydrocarbons, mining, water, forestry, and SERNAP rules add separate authorisations and grounds.

Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. Bolivia's economy and public budget depend heavily on **gas, mining, and increasingly lithium**; state companies (YPFB, COMIBOL, and the lithium company) are themselves major developers; the state promotes extraction and big infrastructure as national development and "Vivir Bien"; and mining cooperatives are a powerful political bloc. None of this is illegal, but it explains the default lean toward approval — and why the community's best levers are consultation, the EEIA, the acción popular, the Defensoría, and organised community, Indigenous, and political pressure, rather than trust that the process leans your way.

The overseers — who watches the decision-makers

- **The Tribunal Constitucional Plurinacional (TCP)** — reviews the constitutional actions (acción popular, amparo, acción de cumplimiento); has annulled authorisations for skipping consulta previa and recognised nature's rights. The key forum.
- **The Defensoría del Pueblo (Ombudsman)** — a constitutionally independent body that defends rights, investigates, and — distinctively — **brings acciones populares itself** (it can act without a power of attorney) in defence of the environment, Indigenous peoples, and the Madre Tierra. A powerful ally.
- **The Contraloría General del Estado** — audits public money and officials.
- **The Ministerio Público (prosecutors)** — for environmental crime and corruption.
- **The Tribunal Agroambiental** — the specialised agrarian-environmental jurisdiction for certain land and environmental matters.

Naming the right body signals you understand the system, and involving the Defensoría del Pueblo or bringing an **acción popular** before the TCP at the right moment can change a project's whole trajectory.

QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented Bolivian and comparable campaigns, not a controlled study. Use them to prioritise effort. The most important lesson for Bolivia sits inside the table: the **acción popular** before the TCP (where consultation was skipped or environmental or Mother-Earth rights are violated) and the active **Defensoría del Pueblo** make the rights framework genuinely usable — but a project the state treats as a national priority, backed by extraction politics and mining cooperatives, is a hard, often years-long fight (TIPNIS is the cautionary tale), so combine every lever with durable community and Indigenous pressure.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost (BOB)	What "Success" Means
Documentation only	5–10%	3–4 months	500–15,000	Project slowed; public better informed
Local/Indigenous opposition only	20–35%	6–24 months	2,000–60,000	Local pressure; authority takes notice
Public participation only	10–20%	1–3 months	500–8,000	On record; can shape EEIA/conditions
Consulta previa challenge	30–45%	12–36 months	3,000–80,000	Force consultation / annul for its absence
Defensoría complaint only	15–30%	3–18 months	0–5,000	Investigation; Defensoría may litigate for you
Acción popular (TCP) only	25–45%	6–36	0–80,000	Authorisation annulled; rights protected

		months		
Media only	10-15%	3-6 months	500-10,000	Public knows; no action by itself
Docs + local/Indigenous opposition	30-45%	12-24 months	5,000-80,000	Pressure plus tightened conditions
Local + political (dept/municipal)	35-45%	12-30 months	5,000-80,000	Departmental/municipal resistance
Consulta previa + acción popular	40-55%	12-48 months	5,000-120,000	Force consultation / annul; protect territory
All steps combined	45-60%	12-48 months	20,000-300,000	Authorisation annulled, consultation forced, project delayed/redesigned, or withdrawn

Key insight: all steps together are several times more effective than any single one — and in Bolivia the mix that works leans on **local and Indigenous pressure + consultation + the acción popular + the Defensoría + Indigenous and Mother-Earth rights**, not any single lever. The distinctive Bolivian advantages are that the acción popular is a fast, free constitutional action for collective and environmental rights, that the Defensoría del Pueblo will itself litigate for communities, and that the Constitution and the Mother-Earth laws give unusually strong rights grounds.

A note on legal cost: public participation, a Defensoría complaint, and the acción popular are free or very low-cost — the acción popular has no filing fee and is meant to be fast, and the Defensoría can bring it for you. The main unavoidable cost is good expert evidence (a hydrologist, biologist, or physician) where the case turns on technical proof. Public-interest and Indigenous-rights organisations take strategic cases.

Effectiveness Visualization

SUCCESS PROBABILITY (authorisation annulled, consultation forced, project delayed/redesigned, or withdrawn)

FAVOURABLE SCENARIO (Indigenous rights or a clear environmental violation, a responsive TCP or an engaged Defensoría):

All steps combined: 45-60%
 Consulta previa + acción popular: 40-55%
 Local + political: 35-45%
 Single step: 5-35%

TILTED SCENARIO (a national-priority extractive/infrastructure project):

All steps combined: 30-45%
 Acción popular (consulta/rights): 25-40%
 Local + Indigenous: 20-35%
 Single step: 3-15%

How to read this honestly. In Bolivia, the strongest single legal fact is usually a **skipped or bad-faith consulta previa** where Indigenous rights are engaged (the TCP has annulled authorisations for it, as in the Río Beni case), or a clear **environmental or Mother-Earth rights violation** that an **acción popular** can protect. Where a project is a national priority pushed by the state and the extractive sector, even a strong case is harder — the **TIPNIS** road showed the government pressing ahead despite mass resistance and legal actions — and the fight can run for years and be dangerous for defenders. But even a "loss" that delays a project, forces genuine consultation, or wins tighter conditions is a real outcome, and Bolivia's biggest conflicts reshaped projects and policy even when a project was not permanently stopped.

Step Importance Ranking (When All Combined)

1. **Local and Indigenous opposition** — a durable, organised community and Indigenous movement is the engine; Bolivia's system responds to sustained, organised pressure, and Bolivia has one of the strongest traditions of it anywhere.
2. **Documentation** — the raw material for participation, a Defensoría complaint, and any acción popular.
3. **Consulta previa and the acción popular** — the distinctive constitutional routes where Indigenous or environmental rights apply.
4. **The Defensoría and public participation** — cheap, essential, and (for the Defensoría) a route to an ally that will litigate for you.
5. **Media and political pressure** — the amplifiers that move departments, municipalities, and the national government.

Winning Bolivian campaigns combined a durable community and Indigenous organisation, a rigorous evidence file, a rigorous participation intervention, a consulta-previa or acción-popular challenge and a Defensoría complaint, sustained media, and political pressure — no single track alone.

What Bolivian Campaigns Actually Show

A few patterns recur across documented Bolivian fights. **Consulta previa and the acción popular genuinely bite** — in the **Río Beni** case (2023) the TCP annulled a mining authorisation that skipped consultation of the Mositén people and, for the first time in Bolivian jurisprudence, recognised a component of the Madre Tierra (the river) as a subject of rights; and in 2024 an acción popular produced Bolivia's first declaration of an "**estado de cosas inconstitucional**" over fires and biodiversity, ordering SERNAP and the environment ministry to act. **The Defensoría del Pueblo is a powerful ally** — it investigates, supports communities, and brings acciones populares itself. **But the state defends flagship projects hard** — the **TIPNIS** road, the **Chepete-El Bala** and **Rositas** dams show the government pressing extractive and infrastructure projects through against Indigenous and environmental opposition, and some legal actions failing, so the honest lesson is that these are long, hard fights. And **organised Indigenous and community resistance reshapes outcomes** — the great marches and mobilisations have changed projects and policy even when a specific development was not stopped. The through-line is that Bolivia rewards communities that combine durable organisation with the consultation, acción popular, Defensoría, and rights levers.

STEP 1: TARGET IDENTIFICATION

You cannot fight what you have not precisely identified. Answer five questions, and write the answers in a shared document — this becomes the campaign's factual spine.

Core Questions You Must Answer

Question 1: What Exactly Will Be Destroyed?

Get the specifics, not impressions: exact location and footprint, project type and size, what is on the land now (homes, farmland, rivers, headwaters, forest, Amazon, Indigenous territory/TCO, a protected area), and what the project would do to it. Obtain the **ficha ambiental** and the **EEIA** from the competent environmental authority — they are public, and they are where the proponent, on the record, describes the impacts and admits the residual ones. List every admitted impact with its page reference — that list is the skeleton of your participation observations and any later case. Pay special attention to **water** (rivers, headwaters), **forest and Amazon**, **protected areas**, and — where relevant — **mercury and mining contamination**.

Question 2: Who Has Decision-Making Power?

Identify precisely: (a) the **category (1-4)** and whether a full **EEIA** is required; (b) the **competent environmental authority** — **national (MMAyA)** or **departmental (gobernación)**; (c) which **sector ministry** (hydrocarbons, mining, energy) and **state company** drive it; (d) whether a **protected area (SERNAP)** or **water source** is affected; and (e) — decisively — whether it affects **Indigenous peoples or their territory**, triggering **consulta previa**. Name the authorities and the politics. Because Bolivia's live levers are consultation, the acción popular, the Defensoría, and rights, know both the decision-makers and the rights that apply.

Question 3: What Specific Action Stops It?

A project can be stopped or reshaped at several points: an EEIA or licence **refused or annulled** for defects or for skipping consultation; **consulta previa** forced where it was omitted; a refused **sector authorisation** or protected-area clearance; an **acción popular** ruling from the TCP; a **departmental or municipal** authority withholding support; or political defeat. Map the points and aim at the ones Bolivia actually responds to.

Question 4: When Is the Decision Final?

Diarise the deadlines: the **public-participation window** (announced when the EEIA is publicised); the licensing decision; and the constitutional-action timing — the **acción popular** can be brought at any time while the violation or threat persists (a real advantage — there is no short filing clock as for some actions), while the **amparo** must be filed promptly (generally within six months of the act, and only where no other route protects the right). Confirm the exact position with a lawyer or the Defensoría. Acting early is still far better than late.

Question 5: Are There Documented Financial Interests or Systemic Pressures?

Map, factually and carefully: who profits, which companies (state companies like YPFB, COMIBOL, or the lithium company,

mining cooperatives, and foreign investors) are behind the project, whether concessions or land changed hands before the proposal, whether the project carries a "national priority" designation, and whether any decision-maker has a tie to the developer. Use public sources — the company registry, the mining and hydrocarbons registries, officials' declarations, and public-procurement records. Build a dated, sourced timeline. Keep it rigorous; Section 11 covers doing it safely — and note that in Bolivia this work can carry real personal risk.

Output of Step 1: a one-page fact sheet with the project's exact description, the category and competent authority, the sector driver, whether consulta previa applies, the departmental/municipal politics, the specific act or lever to pursue, every deadline, and the money map.

Worked example: which lever is actually open

Suppose a gold mine using mercury is proposed on a river in the northern Amazon, on and around the territory of an Indigenous people. Working the questions: **Q1** — the EEIA (or its absence) concerns impacts on the river, on fish and forest, and mercury contamination affecting health. **Q2** — as a significant mine it needs a full **EEIA** and licence (national or departmental), a **mining authorisation**, and — because an **Indigenous people and its territory** are affected — **consulta previa**; a **protected area** may also be in range. **Q3** — the live levers are: rigorous **public participation**; insisting on **consulta previa** (and litigating its absence); a **Defensoría** complaint on the mercury and water contamination; and an **acción popular** before the TCP for the community's and the river's rights — exactly the Río Beni template. **Q4** — you diarise the participation window; the acción popular can be brought while the threat persists. **Q5** — the registries show the mining title-holder and cooperative and the concession timeline. In an afternoon you know which levers are open — and that consulta previa, the acción popular, and the Defensoría, not a single dramatic move, are your strongest cards.

STEP 2: DOCUMENTATION

Documentation separates a campaign the authorities, the Defensoría, and the TCP take seriously from one dismissed as complaint. It is also what your participation observations, a Defensoría complaint, and any acción popular all live or die on — and in Bolivia, documenting **water and mercury/mining contamination**, the **Indigenous status and territory** of the affected people, and impacts on **forest, Amazon, and protected areas** is especially decisive. Build three layers.

The Three Documentation Layers

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the project — you cannot show harm without a baseline, and once ground is broken the "before" is gone. Start the day you learn of the project.

Water above all. Document the current state of rivers, streams, headwaters, and any lakes or wetlands — quality and quantity — using official data, academic studies, and your own dated records. Where mining is involved, document baseline **mercury and heavy-metal** levels if you possibly can, because contamination is decisive and mercury is a signature Bolivian mining harm.

Nature and land. Document forest, Amazon, protected species and habitats, any **protected area (SERNAP)**, and the community's **land and territory**, using environmental and forestry records. Document the community's **Indigenous status and collective title** — whether it is a recognised **nación o pueblo indígena originario campesino** with a **TCO / territorio** — because that status triggers consulta previa and the strongest constitutional protections.

Health and community. Document the human baseline — nearby homes, schools, health posts, water sources, the population, and existing health conditions (including any existing contamination) — because health and living-environment impacts strengthen both the case and the human story.

How to hold it. Keep everything dated, sourced, geo-referenced, and backed up in a shared folder (and, given the risks, in more than one safe place). A well-organised baseline is more useful than a merely large one.

LAYER 2: IMPACT ANALYSIS

Show what the project would do to that baseline. Your main text is the proponent's **EEIA** (or the ficha ambiental where that is all there is) — read it critically and catalogue four things:

1. **Admitted impacts** — every harm the EEIA itself concedes, with page references. Unarguable.
2. **Water, mercury, and headwater impacts** — scrutinise the treatment of water, contamination (mercury/heavy metals for mining), and headwaters especially; underestimation here is both common and decisive.
3. **Underestimated or omitted impacts** — downplayed effects and, critically, **cumulative impacts** with other projects and concessions in the same basin or forest (a recurring, powerful gap, especially in mining and gas frontiers).
4. **Participation and consultation adequacy** — whether public participation was genuine (or held before the results were known), and — where Indigenous peoples are affected — whether **consulta previa** was carried out at all and in good faith. A skipped consultation or a token participation process is a documented, court-tested defect (the Río Beni ground).

Get expert eyes on it. A critique carries far more weight when a qualified professional — a hydrologist, ecologist, toxicologist, or physician — has reviewed and signed it, even pro bono. Universities, environmental and Indigenous-rights organisations with technical staff, and independent scientists are sources. For mercury and water especially, a correct independent measurement can be decisive. The goal is a written impact critique that reads as technical, that the authority, the Defensoría, and the TCP can act on.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate environmental harm into human terms, because that is what moves neighbours, authorities, and the courts. Document:

- **Health** — the specific risks (mercury and heavy-metal contamination, water contamination, dust) to nearby residents, drawing on recognised standards and, where possible, a physician's assessment; mercury contamination of Amazonian communities is a documented, powerful Bolivian issue.
- **Economy and livelihoods** — effects on fishing, farming, forest use, and the water livelihoods depend on. Quantify it.
- **Community, territory, and culture** — the loss of territory, water, forest, and cultural and ancestral ties, and the strain on the community.

Package this layer twice: a rigorous version for participation, the Defensoría, and the TCP, and a plain-language one-page version for neighbours and the press.

How to Structure Your Documentation

- **Phase 1: Baseline (Months 1-2)** — assemble the "before" record (water and, for mining, mercury first) before ground is broken; confirm the community's recognised status and territory.
- **Phase 2: Impact (Months 2-3)** — dissect the EEIA/ficha and the participation/consultation record; line up expert review before the participation window so your critique is ready to file.
- **Phase 3: Health/Economic (Months 3-4)** — quantify the human and economic stakes and package them.

Common Documentation Pitfalls (What Fails)

- **Waiting for perfect data** — file observations on time with your best evidence; the participation window is short.
- **Neglecting water and mercury** — for mining these are the decisive issues in Bolivia; make them central and specific.
- **Ignoring consultation** — where Indigenous rights apply, the absence of consulta previa is often the winnable ground; do not overlook it.
- **Only environmental data** — authorities and the TCP respond to health, economic, and collective-rights arguments too. Breadth wins.
- **No expert review** — an impact critique no qualified person has signed is easy to wave away.
- **Ignoring the proponent's own admissions** — the EEIA is a source of concessions. Quote it back, with page numbers.

Documentation Budget Breakdown (BOB)

Item	Low (volunteer/pro-bono)	Higher (commissioned)
Baseline data gathering (esp. water)	500-3,000	5,000-40,000
Expert technical report (hydrology/toxicology/health)	0 (pro bono)	10,000-80,000
Independent monitoring/sampling (incl. mercury)	1,000-8,000	8,000-60,000
Legal consultation on the file	0 (Defensoría/NGO)	3,000-30,000
Printing/outreach/travel	500-5,000	5,000-30,000

Much can be done for near-zero with pro-bono experts, the Defensoría, and public data, though travel in remote Amazon and Andean areas adds cost. Spend where a paid report materially strengthens a Defensoría complaint or an acción popular — usually **water, mercury, or health**. One solid report on the decisive issue is worth more than five general ones.

WHAT TO GATHER, AND WHERE TO FIND IT

Most of what wins a case already exists in public records. The job is knowing which record holds which fact, and pulling it before you need it. This section is the shopping list; it also points you to the sources this map links.

Start at the competent environmental authority. In Bolivia the official documents for a project — the ficha ambiental, the categorisation, the EEIA, the licence and its conditions — are held by the **competent environmental authority** (the national **MMAyA** or the departmental **gobernación**). Check these; the legal position often turns on what was decided and whether consultation happened.

The EEIA and the participation/consultation record. Get the proponent's EEIA (or ficha) as it is publicised — it is public, and it is where the proponent admits harm. The **participation record** and, where it applies, the **consulta previa** process are what you scrutinise for legal grounds.

Baseline environmental data. Environmental and water data from MMAyA and the departments; forestry and protected-area data (ABT, SERNAP); and academic and NGO studies (several document Amazonian mercury contamination).

Ownership, concessions, and money. Company ownership from the company registry (**SEPREC/FUNDEMPRESA**); mining rights from the mining authority (**AJAM**); hydrocarbons from YPFB and the sector ministry; officials' declarations; and public-procurement records.

How to force a document open. Bolivia's constitutional right of **petition** and access-to-information provisions let you request information from public bodies, and the **Defensoría del Pueblo** can help obtain it. The **acción de acceso a la información** and the Defensoría's intervention are routes where a body stonewalls. Use the wording in Section 8E.

The Defensoría del Pueblo. The Defensoría investigates, obtains information, supports communities, and — distinctively — **brings acciones populares itself**. Approaching it early is one of the highest-value moves you can make.

Free and low-cost help. Environmental and Indigenous-rights organisations (Bolivia has several strong ones working on extractives, the Amazon, water, and Indigenous rights — CEJIS, CEDIB, and others) advise and litigate, and university clinics take strategic cases; the **Defensoría**, the **acción popular**, and the **access-to-information** route are free to approach.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to the deciding authority, and the local-ally entries point you to the communities, Indigenous organisations, and NGOs already working nearby. Pull that thread first, then follow it into the environmental authorities, the registries, and the information requests above.

STEP 3: BUILDING LOCAL OPPOSITION

Critical Insight About Organizing

Sustained, visible local pressure is the single biggest factor in whether a Bolivian project is stopped or reshaped — because the levers that matter (a department or municipality withholding support, genuine consulta previa, a Defensoría complaint or acción popular with community weight, political defeat) all respond to organised communities. Bolivia has one of the deepest and most storied traditions of community and Indigenous organising anywhere: the **ayllus** and **markas** of the highlands, the lowland Indigenous organisations, the campesino unions and confederations, the great **marches (marchas)** from the lowlands to La Paz, and the water and gas "wars" that reshaped the country. Build on that tradition.

Two principles carry special weight here: **legitimacy and rootedness** (a movement led by the affected communities, their own authorities, and the Indigenous and campesino organisations is far harder to dismiss — and, where Indigenous rights are engaged, the community's own institutions are the rights-holders the law recognises), and **durability and unity** (Bolivia's landmark fights were sustained over years, and the state and companies have used selective benefits,

cooptation, and even the mining cooperatives to split communities, so unity is a strategic asset to guard).

PHASE 1: FOUNDATION (Months 1-2)

Step 1a: Work through the community's own institutions. Start with the recognised community and Indigenous authorities and assemblies, the ayllu/marka or lowland organisation, the campesino union, and the people most directly affected — those whose water, land, health, or livelihood is at stake. In Bolivia the community's own institutions are not just allies but, where collective rights apply, the legal rights-holders. Listen first: concrete local concerns (a river, mercury, forest, territory) motivate more than abstractions.

Step 1b: Affinity groups by concern. Let people plug in through what they care about — water and contamination, territory and land, forest, health, and cultural and territorial rights. Different concerns reach different people.

Step 1c: Constitute or strengthen the organisation. Work through the **community and Indigenous organisations** and, where a fight spans several communities, form or join a broad **coordinadora or comité** with mandated representatives and minuted decisions. This is the vehicle that coordinates participation, demands consultation, files the Defensoría complaint, negotiates, and — with legal advice or the Defensoría — brings the acción popular. Keep decisions transparent and collective; it protects legitimacy and resists the cooptation the state and cooperatives attempt.

PHASE 2: PUBLIC LAUNCH (Months 2-3)

Step 2a: Community assembly (asamblea/cabildo). Hold a public assembly to inform, decide collectively, and mandate representatives; bring the maps, the EEIA's own admissions, and the participation deadline. A visible, united assembly signals seriousness to authorities and the press, and a formal community decision carries real legal and political weight.

Step 2b: Opposition materials. One-page, factual, sourced materials (in Spanish and, where relevant, the community's own language — Aymara, Quechua, or a lowland language); lead with water, contamination, territory, health, and rights stakes and the deadline. Include how to submit observations in the participation process.

Step 2c: Mass observations and the consultation demand. Coordinate **mass observations** in the public-participation process, and — where Indigenous rights apply — a formal **demand that consulta previa be carried out**. Many observations carry weight; a formal consultation demand puts a powerful, court-tested right on the record.

Step 2d: Media at launch. Time it to the participation window so coverage and the deadline reinforce each other.

PHASE 3: COALITION EXPANSION (Months 3-6)

Step 3a: Organisation outreach. Bring in national and regional environmental and Indigenous-rights organisations (several litigate and provide technical support — CEJIS, CEDIB, and others), the Indigenous confederations, the Church and human-rights bodies (which have historically accompanied these fights), and medical and academic experts. Each adds credibility, reach, lawyers, and protection. **Approach the Defensoría del Pueblo** — it can investigate and litigate for you.

Step 3b: Coalition agreements. Agree roles, spokespeople, and messaging clearly before disagreements arise, and settle how decisions are made across communities. Who represents the community in consultation? Who instructs the lawyer or the Defensoría? Who files the acción popular? Who speaks to the press? Settling this early prevents the splits — and the cooptation — that sink movements.

Step 3c: Coordinated public work. Joint observations and consultation demands, a joint Defensoría complaint and acción popular, shared experts and lawyers, shared costs, and a coordinated approach to the department, the municipalities, and the national government.

PHASE 4: SUSTAINED PRESSURE (Months 6-12)

Step 4a: Political pressure (department and municipality). Lobby the departmental government and assembly and the municipalities for resolutions against the project and for withholding local support; engage the Defensoría; press national authorities and the Asamblea Legislativa. In Bolivia, a department or municipality turned against a project, and the Defensoría's attention, matter a great deal.

Step 4b: Public actions and media (ongoing). Assemblies, marches, and peaceful protest are a deep Bolivian tradition and a constitutional right; keep them lawful and safe. Steady media keeps the issue alive and signals durability. Feed the story new pegs — the EEIA, the participation process, the consultation demand, the licence, the Defensoría complaint, the

acción popular.

Step 4c: Prevent failure points. Movements fade or fracture when they miss the participation deadline, rely on sentiment over evidence, are split by selective benefits and cooptation (including by mining cooperatives), or peak too early. Diarise every deadline, build the file, decide collectively and transparently, guard unity, and pace to the decision — which, in Bolivia's biggest fights, has run for years.

Worked example: a coordinadora that unlocks the strong levers

Several communities learn that a mine using mercury will contaminate the river that feeds their territory. A wave of anger and social-media activity appears — real energy, no leverage. What converts it into force happens in the first weeks and is deliberately unglamorous. First, the communities act **through their assemblies and Indigenous organisation**, taking formal decisions, because as recognised peoples they are the rights-holders the law protects. Second, they **form a coordinadora** across the affected communities, with mandated representatives and transparent, collective decision-making — the vehicle authorities must deal with and the structure that resists cooptation. Third, because the communities hold **collective rights**, they demand **consulta previa** and document their recognised status — turning a protest into a rights claim the TCP can enforce. Fourth, they bring in a **toxicologist and an Indigenous-rights lawyer** (and approach the **Defensoría**) to document the mercury and the consultation gap. By the time the participation process opens, the coordinadora can file mass observations, demand consultation, lodge a **Defensoría** complaint, and — following the **Río Beni** template — bring an **acción popular** for the community's and the river's rights. None of that required a court win yet, but it made every later lever real. The lesson generalises: **in Bolivia, the community institutions you work through and the coordinadora and consultation demand you organise in month one are what make the acción popular, consultation, and Defensoría levers real by month eight.**

Opposition Building Budget: Year-Long Campaign (BOB)

Highly variable. A lean, community-run movement operates on **a few thousand to tens of thousands of bolivianos** (assemblies, materials, travel, the participation process), much of it volunteer. A campaign expecting litigation should budget for **expert reports (10,000-80,000)** — though the acción popular has no filing fee, the Defensoría and NGOs take strategic cases, and much can be done pro bono; travel in the Amazon and Andes is the main cost. Bolivian movements typically fund the legal stage through **community contributions, solidarity and NGO support, and coalition cost-sharing**. Keep transparent, collective accounts — it protects legitimacy and resists cooptation.

STEP 4: LEGAL CHALLENGES

Bolivia gives communities real legal tools — public participation, consulta previa, the Defensoría, the acción popular, and Indigenous and Mother-Earth rights — but they are configured differently from many countries, and choosing the right one is essential. Three tracks — participation and consultation, the Defensoría (oversight), and the constitutional courts.

TRACK 1: PARTICIPATION AND CONSULTA PREVIA (the front door)

- **Public participation (consulta pública).** During the EEIA, submit written **observations** in the participation process. It builds the record, can shape the conditions or the licence, and an ignored or sham process is a documented flaw — though remember it is often held before the results are known and is non-binding, so treat it as record-building, not as your decisive lever.
- **Prior consultation (consulta previa — the powerful right).** Where the project affects the **collective rights of Indigenous peoples**, the State must carry out **consulta previa** under the Constitution and **ILO 169** before authorising it. It is not treated as a binding veto in practice, but it is a real, court-enforced right: **the absence of a required consultation has led the TCP to annul authorisations** (the Río Beni case). Demand it in writing, and litigate its absence.

TRACK 2: THE DEFENSORÍA DEL PUEBLO (the ally that litigates)

- **A complaint to the Defensoría.** The **Defensoría del Pueblo** is a constitutionally independent rights body that will **investigate**, obtain information, accompany the community, issue findings, and — distinctively — **bring an acción popular itself** in defence of the environment, Indigenous peoples, and the Madre Tierra (it has done exactly this on water contamination, mining consultation, and Amazon fires). It is free, powerful, and often the fastest route to a serious legal challenge. Approach it early.

TRACK 3: THE CONSTITUTIONAL COURTS (the decisive route)

- **The acción popular (the key tool).** A **fast, free constitutional action** to protect **collective and diffuse rights** — the environment, public health, safety, the patrimony, and the rights of the Madre Tierra. It has **no filing fee**, is meant to be swift, can be brought while the violation or threat persists (no short deadline), and can be brought by any person or organisation — or by the Defensoría — on behalf of the collective. It is the classic and most successful Bolivian tool where environmental or collective rights are threatened, and it reaches the **TCP** on review. This is your strongest legal lever.
- **The amparo constitucional.** Protects individual fundamental rights against an illegal act or omission, where no other route protects them; must be filed promptly (generally within six months). Useful for individual rights breaches.
- **The acción de cumplimiento.** Compels an authority to perform a clear legal duty it is failing to perform.
- **The Tribunal Agroambiental and ordinary/administrative routes.** For certain land and environmental matters, and to challenge the licence as an administrative act.
- **International backstops.** The Inter-American human-rights system and ILO supervision provide further, slower leverage where rights are breached — the Inter-American Court's Saramaka and Sarayaku consultation standards are cited in Bolivian advocacy.

The three legal challenge types

TYPE 1: PARTICIPATION + CONSULTA PREVIA (the front door)

Observations in participation, and — where Indigenous rights apply — insisting on and litigating consulta previa. No fee, builds the record, and (for consultation) a court-enforced right.

TYPE 2: THE DEFENSORÍA (the ally that litigates)

A free complaint to a rights body that will investigate and bring an acción popular for you — often the fastest route to a real challenge.

TYPE 3: THE ACCIÓN POPULAR AND THE COURTS (the decisive route)

The fast, free acción popular for collective and environmental rights before the TCP — Bolivia's sharpest legal tool — plus amparo and cumplimiento.

Legal Strategy Decision Tree

1. **Is the participation window open?** → Submit **observations** now, and — where Indigenous rights apply — **demand consulta previa** in writing.
2. **Is there environmental harm, contamination, or a collective-rights threat?** → Approach the **Defensoría** and prepare an **acción popular** (no fee, fast, no short deadline).
3. **Was consultation required but skipped?** → Build the **consulta-previa** ground and litigate it via acción popular (the Río Beni template).
4. **Is an authority failing a clear legal duty?** → Consider an **acción de cumplimiento**; for an individual rights breach, an **amparo**.

Litigation Success Factors

The right ground (a skipped consultation; an environmental, health, or Mother-Earth rights violation; a water/EEIA defect); the community's documented status and territory (for consultation and collective claims); a rigorous, expert-backed evidence file (water and mercury above all); and — a real advantage — the acción popular's speed, zero cost, and lack of a short deadline, plus the Defensoría's willingness to litigate. Bringing the Defensoría in strengthens almost every case.

What to Avoid: Legal Failures

Failing to demand consultation where it applies; treating non-binding participation as your decisive lever; relying on sentiment instead of documented harm; and going to court on a general grievance rather than a specific collective-rights or environmental violation the acción popular can protect.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when it is aimed at a specific legal ground. Here is how the records you gathered map onto the arguments that most often work in Bolivia — so you file the right fact against the right ground.

A skipped or bad-faith consulta previa → acción popular / annulment (the Río Beni ground). Feed it with: proof of the community's recognised status and territory, and the record showing consultation was omitted or not in good faith.

An environmental, health, or Mother-Earth rights violation → acción popular. Feed it with: your water/mercury/health evidence and the collective and environmental rights at stake — including, following Río Beni, the rights of the river or ecosystem itself.

Water and mercury contamination → Defensoría complaint and acción popular. Feed it with: baseline and dated monitoring evidence of contamination, expert-assessed.

Ignored cumulative impacts → participation / legal ground. Feed it with: a map and list of the other projects and concessions in the basin or forest and the EEIA's silence on their combined effect.

A wrong (too-low) category → challenge the categorisation. Feed it with: the evidence that the project's impacts require a full EEIA it was not made to do.

An authority failing a clear duty → acción de cumplimiento. Feed it with: the duty and the evidence it is not being performed.

The pattern: match one clean, documented defect to one clear ground, lead with **consulta previa** (where it applies) and the **environmental/Mother-Earth rights** grounds, bring in the **Defensoría**, and get it before the **TCP** via **acción popular**. An environmental or Indigenous-rights NGO, or the Defensoría, can tell you fast which ground is live.

STEP 5: MEDIA STRATEGY

Media rarely stops a project by itself, but it raises the political cost of approval, protects the movement and its leaders (visibility can be a shield), sustains momentum, and reaches experts and allies you would not otherwise find.

How Journalists Actually Work

Reporters need a story with a hook, a human face, a conflict, and a document. Hand them the EEIA's own damning admissions (quoted, with page numbers), a named community member whose water or territory is at stake, a clear deadline, and a striking image (the threatened river, forest, or territory). Make it easy, and never give a fact you cannot stand behind.

The Newsworthiness Formula

Local stakes + a credible threat + a deadline + a David-and-Goliath frame + a visual = coverage. Bolivian conflicts — mines and mercury, gas blocks, dams, roads through Indigenous territory, and threats to water and the Amazon — draw regional and national attention on exactly this formula, especially where water, an Indigenous people, or mercury contamination is at stake.

Know the Outlets That Cover This Beat

Map the national outlets and their environment/investigations desks, the strong regional and community press and radio (which reach affected communities directly, and in the Andes and Amazon are essential), and specialist environmental and Indigenous-rights media. Build a contact list with names and beats.

Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable contact. One trusted relationship with a journalist beats a dozen releases. Offer access — to the site, to affected community members, to your experts.

Why media matters even when it doesn't make the front page

Coverage does quieter work: it reaches an expert who reviews the EEIA for free, a lawyer or NGO that will bring an acción

popular, an official at the Defensoría, and it creates a dated public record that helps protect leaders who face real risk. A steady drumbeat of accurate coverage, plus the Defensoría's attention, moves departments and the national government more reliably than one national splash — and Bolivia's biggest conflicts became national stories that shifted policy.

Sample Media Timeline

Launch with the participation window; refresh at each milestone — the mass observations, the consultation demand, the licence, the Defensoría complaint, the acción popular. Each is a fresh news peg.

Media Measurement

Track coverage, but measure what matters: whether authorities and the Defensoría are responding, whether the movement is growing and its leaders are safer, whether experts and allies come forward, and whether the politics around the project is shifting.

EMAILS & LETTERS

Ready-to-adapt templates. Keep them factual, dated, and sourced. Submit important ones through the authority's registry (ventanilla / mesa de partes) or the participation process, and keep dated proof (cargo) of anything you file — Bolivian deadlines are real and proof of filing matters.

8A. Email to a reporter (story pitch)

Subject: [Department]: communities challenge [project] before [deadline] — documents attached

Estimada/o [name],

A [project type] is proposed at [location, department]. The proponent's own environmental study (EEIA) admits [specific admitted impact, quoted, with page number], including impacts on [the river/forest/territory] that [community] depends on [and mercury contamination]. The window to submit observations closes on **[date]**.

The affected communities, organised as **[coordinadora / Indigenous organisation]**, are submitting observations, [demanding consulta previa,] and preparing [a Defensoría complaint / an acción popular]. The human stakes: [water/health/territory point]. [If relevant: these are recognised Indigenous peoples with collective rights, so consulta previa applies.]

I can connect you with community members and our experts, and arrange a visit. Could we talk this week?

[Name] · [Organisation] · [phone] · [email]

8B. Letter to a decision-maker (competent environmental authority / gobernación / municipality)

Subject: [Project] — [file/expediente number]

A la/el [competent environmental authority / Gobernador/a / Alcalde/sa]:

We write on behalf of [community / coordinadora] regarding [project] at [location]. We respectfully ask you to **[reject/annul the licence / require genuine public participation / ensure consulta previa is carried out / withhold local support]** for the following reasons:

1. [Ground 1 — e.g. the EEIA underestimates impacts on the river and mercury contamination.]
2. [Ground 2 — e.g. consulta previa, required for our recognised people, was not carried out.]
3. [Ground 3 — e.g. cumulative impacts with other concessions in the basin were not assessed.]

We request a written response. We are ready to provide the underlying evidence.

[Signatories, community/coordinadora, contact]

8C. Observations in public participation

Observations on the EEIA for [project], [authority], expediente [number]

[Community / coordinadora] submits the following observations within the participation period: 1.

Water/contamination. [Impacts on the river and aquifer, and mercury/heavy-metal contamination, are underestimated; evidence attached.] 2. **Consulta previa.** [Our community is a recognised nación/pueblo indígena originario campesino with collective rights and territory; consulta previa under the Constitution and ILO 169 must be carried out.] 3. **Cumulative impact.** [This project, with other projects/concessions in the basin, must be assessed together.] 4. **Participation/category.** [The process was inadequate / the categorisation is too low because [reason].]

We ask the authority to **reject the licence** or, at minimum, require full assessment, genuine participation, consultation, and strict conditions.

[Date, community/coordinadora, contact; attach evidence]

8D. Complaint / request for action to the Defensoría del Pueblo

Subject: Request for intervention and an acción popular regarding [project]

A la Defensoría del Pueblo:

We, [community / coordinadora / Indigenous organisation] of [area], request your intervention regarding [project] at [location], which [contaminates our water with mercury / threatens our territory and health / was authorised without the consulta previa our people are entitled to]. We attach [evidence]. We ask the Defensoría to **investigate, obtain information, and consider bringing an acción popular** in defence of our rights and the Madre Tierra, and to accompany our community.

[Community/coordinadora, date, contact]

8E. Access-to-information request (solicitud de acceso a la información)

Subject: Request for public information

A la/el [competent environmental authority / sector ministry / gobernación]:

Exercising the constitutional right of petition and access to public information, we request: 1. the full ficha ambiental, EEIA, and licence file for [project]; 2. the public-participation record and any consulta previa documents; 3. [specific data — water/mercury monitoring, the categorisation].

Please provide these within the legal period. If any part is refused, please state the specific legal basis; we reserve the right to seek the assistance of the Defensoría and to bring an acción de acceso a la información.

[Name/community, date, contact]

8F. Legal-action instruction to counsel (acción popular / amparo)

Subject: Proposed acción popular / amparo regarding [project]

A la/el [counsel]:

[Community / coordinadora / named members] intend to bring [an acción popular / an amparo] regarding [project], on the grounds that [consulta previa was omitted / the environmental, health, and Mother-Earth rights of our community and the river are threatened / a fundamental right is breached]. We can provide: proof of the community's recognised status and territory, water and mercury evidence, and expert reports. Please advise on the action, provisional measures to suspend works, standing (including whether the Defensoría should bring it), and strategy — noting the acción popular has no filing fee and no short deadline.

[Date, signature]

8G. Press release (effective)

PARA DIFUSIÓN INMEDIATA — [date]

Communities of [department] submit [number] observations against [project] before [deadline]

[Coordinadora / communities] today submitted [number] observations on [project] at [location], citing [top two grounds], and [demand consulta previa / will bring an acción popular] if the licence is granted. "[Short, human quote from an affected community member]," said [name, role].

The proponent's own EEIA admits [quoted impact]. The licence rests with [authority]; the observation window closes

on [date]. [If relevant: recognised Indigenous peoples are affected, so consulta previa applies.]

Contacto: [name, phone, email]. Photos, the full observations, and interviews available on request.

8H. Denunciation to the environmental authority / prosecutor

Subject: Environmental complaint (denuncia) regarding [project/facility]

A la/el [competent environmental authority / Ministerio Público]:

We, [community / coordinadora / residents] of [area], file this complaint regarding [project/facility] at [location], concerning [water/mercury contamination / breach of the licence conditions / operating without a licence]. We attach [monitoring data, photographs, and the relevant condition]. We request inspection, corrective measures, and, where warranted, sanction, and ask to be kept informed of the proceedings.

[Community/coordinadora, date, contact]

Important Caveat

Templates are starting points. Adapt every one to your real facts, cite the actual expediente and dates, and — for anything heading to court — have counsel experienced in constitutional and environmental litigation, or the Defensoría, review it. Deadlines matter (the participation window; the amparo, which must be filed promptly; the acción popular has no filing fee and no short deadline but is best brought early). Keep dated proof (cargo) of everything you file, and — given the risks to defenders — get advice on protecting the community's leaders.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can build a coordinadora or run a multi-year campaign. If you have an afternoon a week, you can still do real damage to a bad project. In rough order of impact for the effort:

1. **Approach the Defensoría del Pueblo.** A short, documented request can trigger an investigation — and the Defensoría can bring an **acción popular** for you. For a small effort, this is the highest-leverage move in Bolivia.
2. **Submit observations in the public-participation process before the deadline.** In your own words, citing one or two concrete problems (water and mercury first; the community's rights; a specific EEIA defect). It costs nothing and goes on the record.
3. **Where Indigenous rights apply, demand consulta previa in writing.** A formal demand puts a powerful, court-enforced right on the record — one of the strongest levers Bolivia offers.
4. **Get the EEIA and quote its worst admission back to the authority.** The proponent's own words carry more weight than any outside claim.
5. **Prepare or ask for an acción popular.** It has no filing fee, no short deadline, and can be brought by any person or organisation — or the Defensoría — for the collective.
6. **Send one accurate email to a reporter** (Section 8A). A single story raises the political cost and can reach an expert, a lawyer, or the Defensoría.
7. **Request the file** (Section 8E) — including the participation and consultation record.

If you do only the first three, you have engaged the ally most likely to litigate for you, put your objections on the record, and asserted your consultation right — and left a trail others can build on. That is a real contribution, not a token one.

WHEN THE SYSTEM IS TILTED

Bolivia's system leans hard toward extraction and state-led development, treats consultation as a non-binding formality, and has seen the government push flagship projects through against fierce resistance. Being honest about this is how you pick the tools that actually work — and stay safe.

What This Tilt DOES (and DOESN'T DO)

The tilt promotes extraction and big infrastructure as national development, keeps consultation non-binding, and mobilises state companies and mining cooperatives behind projects. It does **not** close the doors: **consulta previa** is a court-enforced right whose absence has annulled authorisations; the **acción popular** is a fast, free constitutional action for collective and environmental rights; the **Defensoría** will litigate for communities; the Constitution and the **Mother-Earth laws** give strong rights grounds; and **departments and municipalities** are genuine political levers. The key is to combine them, move early, and concentrate force where the tilt is weakest — consultation, water/mercury contamination, and collective and Mother-Earth rights.

Reading Your Tilt: Responsive, Mixed, National-Priority

- **Indigenous rights engaged, a responsive TCP or an engaged Defensoría.** Here consultation, the acción popular, the Defensoría, participation, and departmental pressure all do real work.
- **Mixed.** A project the national government wants but a department or communities resist. Weight shifts toward organised community and Indigenous pressure, media, the Defensoría, and a consultation or acción-popular claim.
- **National-priority / state-promoted project.** A gas block, a big mine (or lithium), or a flagship road or dam the state is committed to. Assume consultation is a formality and the fight will be long; prepare the **consulta-previa and acción-popular route, the Defensoría, the departmental and municipal levers, and a sustained, protected campaign**. Even here, delay, forced consultation, and policy change are achievable — though **TIPNIS** is the honest warning that the state may press ahead despite resistance and even legal actions.

Documented Bolivian Dynamics

The record shows both the wall and the way through. In the **Río Beni** case (2023) the TCP **annulled a mining authorisation for skipping consulta previa** and recognised a river as a subject of rights; in 2024 an acción popular produced Bolivia's first "**estado de cosas inconstitucional**" declaration over fires and biodiversity. The **Defensoría del Pueblo** actively litigates for communities and the Madre Tierra. But **TIPNIS** — the road through the Isiboro Sécure Indigenous Territory and National Park — showed the government pushing a flagship project through against a mass Indigenous march and a contested consultation, and other legal actions (against **Chepete-El Bala** and **Rositas**) failing when the state was determined. The recurring, sober lesson is that this terrain can be dangerous, and protecting leaders is part of strategy.

Assessment Framework — Determine Your Situation

Ask: Are Indigenous rights engaged (consultation applies)? Is water/mercury contamination central (a strong ground)? Was participation genuine? Will the Defensoría take it up? Is the department or municipality persuadable? Is the project a state priority (a harder, longer fight)? Are leaders at risk (plan protection)? The answers tell you whether to lead with consultation, the acción popular, the Defensoría, or political pressure — usually a combination.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

Bolivian movements rely on assemblies, marches, road blockades, and peaceful protest, which are a deep tradition and largely a constitutional right, alongside the legal and Defensoría routes. But protest in extractive and land conflicts has at times met a heavy state or counter-mobilised response, and confrontations (including with mining cooperatives) can turn dangerous. Know the law, prioritise safety and the protection of leaders, keep actions lawful, and get legal advice before anything that could carry legal or physical risk. This guide notes such tactics exist; it does not advise breaking the law, and the movement's safety and credibility are assets worth protecting.

Honest Assessment

Tilted fights are harder, some are lost (TIPNIS and the failed dam challenges are proof), and this terrain can be genuinely dangerous. But "harder" is not "hopeless" — consulta previa, the acción popular, the Defensoría, the Mother-Earth framework, departmental levers, and durable community and Indigenous pressure have annulled authorisations, forced consultation, protected rivers, and delayed and reshaped projects, and even an ultimate loss on one project often buys years of delay and an organised, experienced community. Concentrate force where the tilt is weakest, protect your people, and settle in for a long campaign if the stakes justify it.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS

CAPTURED

Most bad decisions are lawful decisions you disagree with. But capture is real in Bolivia, and it does not look the same in every institution. Read your specific situation actor by actor, because the type of capture changes which lever works — and, sometimes, tells you a lever is closed. Handle it carefully: reckless public accusations can expose you to defamation liability and, in this terrain, to real danger.

The competent environmental authority and the sector ministries. The central pressure point: the ministries that **promote** extraction (hydrocarbons, mining) also sit close to the bodies that license it, and the state companies are themselves the developers. Signs: a rushed licence, an EEIA that reads as the proponent's document, a category set too low to avoid a full study. Lever: the Ley 1333/RPCA rules, the participation and consultation record, and an acción popular.

Departmental and municipal officials. Capture here often runs through patronage, cooperative politics, and selective benefits to split communities. Signs: a sudden change of stance, a rushed local permit, an official tied to the project or a cooperative. Lever: officials' declarations, the Contraloría (for public money), and the ethics rules.

The mining cooperatives. A distinctively powerful and politically protected bloc in Bolivia; some operate with weak oversight and have been sources of contamination and of pressure against opposing communities. Signs: cooperative titles acquired quietly, mercury use, and cooperative mobilisation against critics. Lever: the mining registry (AJAM), the environmental and mercury evidence, and the Defensoría.

The companies and state enterprises. Watch for concessions quietly acquired before a project is public, opaque ownership, and the use of **selective benefits to divide communities**. The registries surface ownership and the concession timeline.

The courts and "national interest." The TCP has delivered landmark rulings (Río Beni), but the wider justice system has faced serious problems of delay and independence, and "national interest" framings grant wide discretion — TIPNIS showed the state prevailing despite the courts being invoked. Treat the acción popular as a genuine but not guaranteed route, and where genuine judicial corruption appears, it is a matter for the control bodies.

How to act on it, safely. Document from public sources before you speak. Route serious allegations through the proper bodies — the **Contraloría** for public money, the **Ministerio Público** for environmental crime and corruption, and the **Defensoría** — not social media. A reckless public accusation can expose you to defamation liability, hand the project a way to change the subject and split the community, and, in this terrain, endanger people. Name capture privately in your strategy; prove it publicly only when you can, and protect your leaders.

INTEGRATION & TIMELINE

The five steps run in parallel and reinforce each other over a campaign that typically spans a year or more (and litigation, if it comes, longer — though the acción popular itself is meant to be fast). Here is how they fit onto one timeline.

Realistic 12-Month Campaign Timeline

Months 1-2 (Foundation). - Identify the target precisely (Step 1) and write the one-page fact sheet — project, category, competent authority, sector driver, whether consulta previa applies, the departmental/municipal politics, the lever to pursue, every deadline. - Work through the community's institutions and Indigenous organisations; constitute or strengthen the coordinadora. - Begin baseline documentation (Step 2, Layer 1), water and (for mining) mercury first, before ground is broken; confirm the community's recognised status and territory. - Request records; **approach the Defensoría del Pueblo** early.

Months 2-3 (Launch). - Submit **observations** in the public-participation process — the key deadline — and, where Indigenous rights apply, **demand consulta previa** in writing (Step 4, Track 1). - Press the department and municipalities for resolutions and withheld support. - Hold the community assembly and launch media timed to the participation window (Steps 3 & 5). - Complete the EEIA critique with expert help, focusing on water, mercury, cumulative impact, and the consultation gap (Step 2, Layer 2).

Months 3-6 (Expansion). - Build the coalition — environmental and Indigenous-rights NGOs, the confederations, the Church/human-rights bodies, and experts (Step 3, Phase 3). - Finish the health/economic analysis (Step 2, Layer 3). - Work with the **Defensoría** on an investigation and a possible acción popular; prepare the acción popular.

Months 6-12 (Pressure & Decision). - Escalate political pressure on the department, municipalities, the Defensoría, and national authorities (Step 3, Phase 4). - Bring the **acción popular** before the courts/TCP (no fee, no short deadline), with a request for **provisional measures** to suspend works (Step 4, Track 3); keep the **Defensoría** engaged (Track 2). - Sustain media and the consultation demand.

Beyond 12 months. - The acción popular is meant to be fast, but review before the TCP and follow-through can take time; provisional measures protect you meanwhile. - If the project proceeds, pursue oversight, compliance monitoring, and — for harm — further complaints and claims. - Keep the community and Indigenous organisation and the file alive; the movement and evidence are assets for the next fight, and protecting leaders remains a priority.

Warning Signs — Act Early

The ficha ambiental is filed and the category set (challenge a too-low category now); the EEIA is publicised and the participation window opens (act now); concessions are being acquired; a "national priority" designation is used; selective benefits or cooperative pressure appear (a divide-and-coopt warning); consultation is being skipped where it applies. Early action beats late reaction — and approaching the Defensoría and demanding consultation early is far stronger than scrambling after a licence issues.

Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: identify the live lever (usually consultation, water/mercury, the acción popular, and the Defensoría); work through the community's institutions and build a broad, durable coordinadora, guarding unity against cooptation; document rigorously, water and mercury first; use consulta previa and the acción popular, and bring in the Defensoría; sustain media and departmental pressure; hit every deadline; and protect their leaders. Losing campaigns: fail to demand consultation; treat non-binding participation as decisive; rely on sentiment; get split by selective benefits or cooperative pressure; peak early; or neglect leader safety.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" in Bolivia takes several forms, and it is worth naming them so you recognise a win when you get one: - an EEIA or licence **rejected or annulled** for defects or for skipping consultation; - **consulta previa forced** where it was omitted, or an authorisation annulled for its absence (the Río Beni outcome); - an **acción popular** that protects the community's, and even the river's or ecosystem's, rights; - **tightened conditions**, or a refused sector authorisation or protected-area clearance; - a **Defensoría** intervention that investigates, litigates, and shifts the politics; - a **department or municipality withholding support**, or resolutions against the project; - a project **delayed for years** until its economics or politics collapse, or a **redesign** that removes the worst harm; - or **policy change** driven by a landmark conflict even where a specific project proceeds.

Bolivian communities have achieved each — usually through organised community and Indigenous pressure plus consultation, the acción popular, and the Defensoría, not through a single dramatic win.

Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone. If Indigenous rights are engaged and consultation was skipped, or an environmental or Mother-Earth rights violation is clear, an acción popular (ideally via the Defensoría) may be well worth it. If a licence has issued, effort shifts to the acción popular, oversight, departmental politics, and the next election. If every avenue is exhausted — and given the real risks and the TIPNIS precedent — redirect accordingly. Continuing is not always right; neither is quitting at the first setback — Bolivia's biggest wins came after years of persistence. Throughout, weigh the safety of your people.

The Bottom Line

Bolivia's system leans hard toward extraction and state-led development, treats consultation as a non-binding formality, and has pushed flagship projects through against resistance — but it hands communities a distinctive and powerful set of levers: **public participation** in every EEIA; **consulta previa** for Indigenous peoples, a court-enforced constitutional right that has annulled authorisations granted without it; the **acción popular**, a fast, free constitutional action for collective

and environmental rights before the TCP; the **Defensoría del Pueblo**, which will investigate and litigate for you; the strong rights framework of the Constitution and the **Madre Tierra** laws (under which a river has been recognised as a subject of rights); genuine **departmental and municipal** levers; and one of the deepest traditions of community and Indigenous organisation anywhere. Communities that work through their own institutions and build a broad, durable *coordinadora*, document to the water, mercury, and rights standards, demand consultation and use the *acción popular* and the Defensoría rather than betting on a single dramatic move, guard their unity against cooptation, keep steady media and political pressure, and protect their leaders have annulled authorisations, forced consultation, protected rivers, delayed and reshaped projects, and changed policy — and can again. No single step wins; the combination does. Start today by finding your deadlines, working through your community's institutions, approaching the Defensoría, confirming whether consultation applies, and identifying which lever is actually open.